IN THE UNITED STATES PATENT AND TRADEMARK OFFICE
BEFORE THE TRADEMARK TRIAL AND APPEAL BOARD

In re Application of:	Agilent Technologies, Inc.
Serial No.:	90/642,875
Mark:	NOVOPANEL
Application Date:	April 13, 2021
Publication Date:	November 9, 2021

In re Application of:	Agilent Technologies, Inc.
Serial No.:	90/842,567
Mark:	NOVOPANEL
Application Date:	July 22, 2021
Publication Date:	November 9, 2021

BRINK BIOLOGICS, INC.	)	
Opposer,	)	
	)	
v.	)	Opposition No. _____
	)	
AGILENT TECHNOLOGIES, INC.	)	
Applicant.	)	

COMBINED NOTICE OF OPPOSITION

Brink Biologics, Inc., an ImmunityBio (NASDAQ:IBRX) affiliate, is a corporation organized and existing under the laws of Delaware with a principal place of business at 3530 John Hopkins Court, San Diego, CA 92121 ("Opposer"). Opposer believes that it will be damaged by the issuance of a registration for the alleged mark for NOVOPANEL ("Proposed Mark") shown in Application Serial Nos. 90/642,875 ("the '875 Application") and 90/842,567 ("the '567 Application"). As grounds for opposition to the Proposed Mark, Opposer alleges as follows:

1. Opposer is a biotechnology solutions company focused on providing testing services and products, including cells and other reagents in the form of kits, for a range of laboratory testing

applications. Opposer offers natural killer cell lines that are established in stable cultures under Good Laboratory Practice (GLP) and current Good Manufacturing Practice (cGMP) conditions and further modified into multiple panels of cell lines suitable for a range of laboratory testing applications. The standardized panel of natural killer cell lines, together with media, media additives and other reagents, offered in conjunction with Opposer's NEUKOPANEL Mark, provide a means to establish a consistent, robust and reliable assay for use in scientific, laboratory or medical research, including the assessment of antibody-dependent cellular cytotoxicity ("ADCC") activity, a key tool in the development and manufacture of monoclonal antibody therapeutics. In addition to these products, Opposer also offers research services for biologic testing, including technical support and biologic analysis. Together, the products and services offered by Opposer provide Opposer's licensees with the tools to conduct discovery research, high-throughput screening, monoclonal antibody characterization, testing of clinical products, stability testing and assessment of product validation and efficacy.

2. Opposer is the owner of valid and subsisting United States Trademark Registration No. 4,187,822 on the Principal Register in the United States Patent and Trademark Office ("the '822 Registration") for the mark NEUKOPANEL ("Opposer's Registered Mark"). Opposer's '822 Registration identifies that the Registered Mark is used in conjunction with "cells for scientific, laboratory or medical research," (the "Registered Mark Goods"). Attached as Exhibit 1 is a true and correct printout from the United States Patent and Trademark Office electronic database showing the current status and title of the '822 Registration as of March 8, 2022.

3. The '822 Registration has become incontestable within the meaning of Section 15 of the Lanham Act, 15 U.S.C. § 1065.

4. Opposer's Registered Mark has been used in interstate commerce in the United States continuously since at least as early as October 26, 2011, in connection with providing, offering for sale, selling, marketing, advertising and promoting the Registered Mark's Goods. In addition, attached hereto as Exhibit 2 is a true and correct copy (redacted) of literature provided to Opposer's licensees,

showing the NEUKOPANEL Mark used in connection with natural killer cells and other materials and as part of Opposer's technical support services.

5. Notwithstanding the inherent distinctiveness of Opposer's NEUKOPANEL Mark, the NEUKOPANEL Mark also has acquired secondary meaning to the public indicating Opposer as the source of goods and services bearing the NEUKOPANEL Mark.

6. Opposer has expended substantial time, money, and resources marketing, advertising, and promoting the Registered Mark Goods sold under the Registered Mark in the various channels through which the Registered Mark Goods are marketed, offered and sold.

7. Opposer's Registered Mark is symbolic of extensive goodwill established by Opposer and serves as a unique identifier of the goods and services offered by Opposer. Opposer has acquired a high degree of recognition through continued use and expenditures of time, effort and money in advertising and promotion. The purchasing public has come to know, rely upon and recognize Opposer's NEUKOPANEL Mark as indicating a source of high quality and reliable goods and services in the life sciences and life science device industries.

8. As a result of its widespread, continuous, and exclusive use of the Registered Mark to identify its Registered Mark Goods and Opposer as their source, Opposer has acquired and owns valid and subsisting federal statutory and common law rights to the Registered Mark.

9. To the best of Opposer's knowledge, the name and address of the Applicant of the NOVOPANEL Application is Agilent Technologies, Inc. ("Applicant"), a Delaware corporation having a principal place of business at 5301 Stevens Creek Boulevard, Santa Clara, CA 95051.

10. Upon information and belief, Applicant provides products and services in the life sciences and clinical and diagnostic testing industries, including cells and other reagents, computer software and equipment for monitoring cell populations, data analysis of cell populations, and related services.

11. On April 13, 2021, Applicant filed the '875 Application as an intent-to-use application for the Proposed Mark, NOVOPANEL. Applicant's Proposed NOVOPANEL Mark is applied for in International Class 005 for "reagents for medical use; medical diagnostic reagents; clinical medical reagents."

12. On July 22, 2021, Applicant filed the ’567 Application as an intent-to-use application for the Proposed Mark, NOVOPANEL. Applicant’s Proposed NOVOPANEL Mark is applied for in International Class 009 for “Downloadable or recorded computer software for operating instrumentation that monitors cell or molecule populations, data acquisition from instrumentation that monitors cell or molecule populations, and data analysis of cell or molecule populations for research and development or diagnostic applications.”

13. Opposer believes that it will be damaged by registration of the ’875 Application and the ’567 Application for the Proposed Mark NOVOPANEL and hereby opposes said Application.

COUNT I

LIKELIHOOD OF CONFUSION

14. Opposer hereby incorporates by reference and re-alleges each and every allegation set forth in Paragraphs 1 through 13.

15. Opposer has senior rights in and to the term NEUKOPANEL because Opposer’s first use of its NEUKOPANEL Mark predates the filing of Applicant’s Proposed Mark or any other date on which the Applicant has relied for the purposes of priority.

16. Opposer’s ’822 Registration is valid and subsisting and is prima facie evidence of Opposer’s exclusive right to its Registered Mark for NEUKOPANEL in commerce in association with the goods and services specified in such registration.

17. Applicant’s Proposed Mark for NOVOPANEL contains the elements “N” and “OPANEL” which are identical to those in Opposer’s Registered Mark for NEUKOPANEL.

18. Applicant’s Proposed Mark for NOVOPANEL merely replaced the letters “EUK” in Opposer’s Registered Mark for NEUKOPANEL with the letters “OV”.

19. Applicant’s Proposed Mark for NOVOPANEL and Opposer’s Registered Mark for NEUKOPANEL each have four syllables.

20. Applicant's Proposed Mark for NOVOPANEL is phonetically similar to Opposer's Registered Mark for NEUKOPANEL, with each mark having phonetically identical final three syllables.

21. Applicant's Proposed Mark for NOVOPANEL is similar in appearance to Opposer's Registered Mark for NEUKOPANEL.

22. Applicant provides products and services that are similar to those offered by Opposer, including reagents, assays and kits that include or relate to cells and/or other reagents, as well as computer software and equipment for monitoring cell populations, data analysis of cell populations, and related services.

23. Applicant and Opposer market their respective products and services in the same or related industries and to the same or related consumers.

24. For at least these reasons, Applicant's Proposed NOVOPANEL Mark so resembles Opposer's NEUKOPANEL Registered mark as to be likely to cause confusion, or to cause mistake, or to deceive as to source by suggesting that Applicant's goods are associated with or approved, endorsed, affiliated, authorized or sponsored by Opposer.

COUNT II

DILUTION BY TARNISHMENT

25. Opposer hereby incorporates by reference and re-alleges each and every allegation set forth in Paragraphs 1 through 24.

26. By reason of Opposer's continuous, extensive and exclusive use for many years, Opposer's NEUKOPANEL Registered Mark is distinctive and famous within the meaning of Section 43(c) of the Lanham Act, 15 U.S.C. § 1125(c).

27. Opposer's NEUKOPANEL Registered Mark became distinctive and famous prior to the filing of Applicant's application or any other date on which Applicant might attempt to rely for purposes of priority.

28. Registration by Applicant of the Proposed NOVOPANEL Mark for Applicant's proposed goods would likely impair the distinctiveness and cause dilution by tarnishment of, and thereby damages, Opposer's famous NEUKOPANEL Mark in violation of 15 U.S.C. § 1125(c). Accordingly, pursuant to 15 U.S.C. § 1063, the Proposed NOVOPANEL Mark is not entitled to registration.

COUNT III

DILUTION BY BLURRING

29. Opposer hereby incorporates by reference and re-alleges each and every allegation set forth in Paragraphs 1 through 28.

30. Registration by Applicant of the proposed NOVOPANEL Mark for Applicant's proposed goods and services would likely impair the distinctiveness and cause dilution by blurring of, and thereby damages, Opposer's famous NEUKOPANEL Mark in violation of 15 U.S.C. § 1125(c). Accordingly, pursuant to 15 U.S.C. § 1063, the Proposed NOVOPANEL Mark is not entitled to registration.

WHEREFORE, Applicant's Proposed NOVOPANEL Mark, Application No. 90/642,875, is damaging to Opponent and, accordingly, Opponent requests that the instant Notice of Opposition be granted and that registration of Applicant's Proposed NOVOPANEL Mark be refused.

Please charge any underpayment or credit any overpayment to Deposit Account 506516.

Date: March 8, 2022

Respectfully submitted,

By: /Alicia M. Passerin/
Attorney for Brink Biologics, Inc., Opposer
LEECH TISHMAN FUSCALDO & LAMPL, LLC
525 William Penn Place, 28th Floor
Pittsburgh, Pennsylvania 15219
Telephone: 412/261-1600
Facsimile: 412/227-5551
E-mail: apasserin@leechtishman.com

EXHIBIT 1

USPTO TESS record, Registration No. 4187822 (NEUKOPANEL)

EXHIBIT 2

Redacted literature provided to Opposer's licensees